

sign and intention; otherwise they cou'd never be rank'd under any of these denominations. 'Tis impossible, therefore, that the character of natural and unnatural can ever, in any sense, mark the boundaries of vice and virtue.

Thus we are still brought back to our first position, that virtue is distinguished by the pleasure, and vice by the pain, that any action, sentiment or character gives us by the mere view and contemplation. This decision is very commodious; because it reduces us to this simple question, Why any action or sentiment upon the general view or survey, gives a certain satisfaction or uneasiness, in order to shew the origin of its moral rectitude or depravity, without looking for any incomprehensible relations and qualities, which never did exist in nature, nor even in our imagination, by any clear and distinct conception. I flatter myself I have executed a great part of my present design by a state of the question, which appears to me so free from ambiguity and obscurity.

PART II. of justice and injustice.

SECTION I. Justice, whether a natural or artificial virtue?

I have already hinted, that our sense of every kind of virtue is not natural; but that there are some virtues, that produce pleasure and approbation by means of an artifice or contrivance, which arises from the circumstances and necessity of mankind. Of this kind I assert justice to be; and shall endeavour to defend this opinion by a short, and, I hope, convincing argument, before I examine the nature of the artifice, from which the sense of that virtue is derived.

'Tis evident, that when we praise any actions, we regard only the motives that produced them, and consider the actions as signs or indications of certain principles in the mind and temper. The external performance has no merit. We must look within to find the moral quality. This we cannot do directly; and therefore fix our attention on actions, as on external signs. But these actions are still considered as signs; and the ultimate object of our praise and approbation is the motive, that produc'd them.

After the same manner, when we require any action, or blame a person for not performing it, we always suppose, that one in that situation shou'd be influenc'd by the proper motive of that action, and we esteem it vicious in him to be regardless of it. If we find, upon enquiry, that the virtuous motive was still powerful over his breast, tho' check'd in its operation by some circumstances unknown to us, we retract our blame, and have the same esteem for him, as if he had actually perform'd the action, which we require of him.

It appears, therefore, that all virtuous actions derive their merit only from virtuous motives, and are consider'd merely as signs of those motives. From this principle I conclude, that the first virtuous motive, which bestows a merit on any action, can never be a regard to the virtue of that action, but must be some other natural motive or principle. To suppose, that the mere regard to the virtue of the action, may be the first motive, which produc'd the action, and render'd it virtuous, is to reason in a circle. Before we can have such a regard, the action must be really virtuous; and this virtue must be deriv'd from some virtuous motive: And consequently the virtuous motive must be different from

the regard to the virtue of the action. A virtuous motive is requisite to render an action virtuous. An action must be virtuous, before we can have a regard to its virtue. Some virtuous motive, therefore, must be antecedent to that regard.

Nor is this merely a metaphysical subtilty; but enters into all our reasonings in common life, tho' perhaps we may not be able to place it in such distinct philosophical terms. We blame a father for neglecting his child. Why? because it shews a want of natural affection, which is the duty of every parent. Were not natural affection a duty, the care of children cou'd not be a duty; and 'twere impossible we cou'd have the duty in our eye in the attention we give to our offspring. In this case, therefore, all men suppose a motive to the action distinct from a sense of duty.

Here is a man, that does many benevolent actions; relieves the distress'd, comforts the afflicted, and extends his bounty even to the greatest strangers. No character can be more amiable and virtuous. We regard these actions as proofs of the greatest humanity. This humanity bestows a merit on the actions. A regard to this merit is, therefore, a secondary consideration, and deriv'd from the antecedent principle of humanity, which is meritorious and laudable.

In short, it may be establish'd as an undoubted maxim, that no action can be virtuous, or morally good, unless there be in human nature some motive to produce it, distinct from the sense of its morality.

But may not the sense of morality or duty produce an action, without any other motive? I answer, It may: But this is no objection to the present doctrine. When any virtuous motive or principle is common in human nature, a person, who feels his heart devoid of that motive, may hate himself upon that account, and may perform the action without the motive, from a certain sense of duty, in order to acquire by practice, that virtuous principle, or at least, to disguise to himself, as much as possible, his want of it. A man that really feels no gratitude in his temper, is still pleas'd to perform grateful actions, and thinks he has, by that means, fulfill'd his duty. Actions are at first only consider'd as signs of motives: But 'tis usual, in this case, as in all others, to fix our attention on the signs, and neglect, in some measure, the thing signify'd. But tho', on some occasions, a person may perform an action merely out of regard to its moral obligation, yet still this supposes in human nature some distinct principles, which are capable of producing the action, and whose moral beauty renders the action meritorious.

Now to apply all this to the present case; I suppose a person to have lent me a sum of money, on condition that it be restor'd in a few days; and also suppose, that after the expiration of the term agreed on, he demands the sum: I ask, What reason or motive have I to restore the money? It will, perhaps, be said, that my regard to justice, and abhorrence of villainy and knavery, are sufficient reasons for me, if I have the least grain of honesty, or sense of duty and obligation. And this answer, no doubt, is just and satisfactory to man in his civiliz'd state, and when train'd up according to a certain discipline and education. But in his rude and more natural condition, if you are pleas'd to call such a condition natural, this answer wou'd be rejected as perfectly unintelligible and sophistical. For one in that situation wou'd immediately ask you, Wherein consists this honesty and justice, which you find in restoring a loan, and abstaining from the property of others? It does not surely lie in the external action. It must, therefore, be plac'd in the motive, from which the external action is deriv'd. This motive can never be a regard to the honesty of the action. For 'tis a plain fallacy to say, that a virtuous motive is requisite to render an action honest, and at the same time that a regard

to the honesty is the motive of the action. We can never have a regard to the virtue of an action, unless the action be antecedently virtuous. No action can be virtuous, but so far as it proceeds from a virtuous motive. A virtuous motive, therefore, must precede the regard to the virtue; and 'tis impossible, that the virtuous motive and the regard to the virtue can be the same.

'Tis requisite, then, to find some motive to acts of justice and honesty, distinct from our regard to the honesty; and in this lies the great difficulty. For shou'd we say, that a concern for our private interest or reputation is the legitimate motive to all honest actions; it wou'd follow, that wherever that concern ceases, honesty can no longer have place. But 'tis certain, that self-love, when it acts at its liberty, instead of engaging us to honest actions, is the source of all injustice and violence; nor can a man ever correct those vices, without correcting and restraining the natural movements of that appetite.

But shou'd it be affirm'd, that the reason or motive of such actions is the regard to publick interest, to which nothing is more contrary than examples of injustice and dishonesty; shou'd this be said, I wou'd propose the three following considerations, as worthy of our attention. First, public interest is not naturally attach'd to the observation of the rules of justice; but is only connected with it, after an artificial convention for the establishment of these rules, as shall be shewn more at large hereafter. Secondly, if we suppose, that the loan was secret, and that it is necessary for the interest of the person, that the money be restor'd in the same manner (as when the lender wou'd conceal his riches) in that case the example ceases, and the public is no longer interested in the actions of the borrower; tho' I suppose there is no moralist, who will affirm, that the duty and obligation ceases. Thirdly, experience sufficiently proves, that men, in the ordinary conduct of life, look not so far as the public interest, when they pay their creditors, perform their promises, and abstain from theft, and robbery, and injustice of every kind. That is a motive too remote and too sublime to affect the generality of mankind, and operate with any force in actions so contrary to private interest as are frequently those of justice and common honesty.

In general, it may be affirm'd, that there is no such passion in human minds, as the love of mankind, merely as such, independent of personal qualities, of services, or of relation to ourself. 'Tis true, there is no human, and indeed no sensible, creature, whose happiness or misery does not, in some measure, affect us, when brought near to us, and represented in lively colours: But this proceeds merely from sympathy, and is no proof of such an universal affection to mankind, since this concern extends itself beyond our own species. An affection betwixt the sexes is a passion evidently implanted in human nature; and this passion not only appears in its peculiar symptoms, but also in inflaming every other principle of affection, and raising a stronger love from beauty, wit, kindness, than what wou'd otherwise flow from them. Were there an universal love among all human creatures, it wou'd appear after the same manner. Any degree of a good quality wou'd cause a stronger affection than the same degree of a bad quality wou'd cause hatred; contrary to what we find by experience. Men's tempers are different, and some have a propensity to the tender, and others to the rougher, affections: But in the main, we may affirm, that man in general, or human nature, is nothing but the object both of love and hatred, and requires some other cause, which by a double relation of impressions and ideas, may excite these passions. In vain wou'd we endeavour to elude this hypothesis. There are no phænomena that point out any such kind affection to men, independent of their merit, and every other circumstance. We love company in general; but 'tis as we love any other amusement. An Englishman in Italy is a friend: A Europæan in China; and perhaps a man

wou'd be belov'd as such, were we to meet him in the moon. But this proceeds only from the relation to ourselves; which in these cases gathers force by being confined to a few persons.

If public benevolence, therefore, or a regard to the interests of mankind, cannot be the original motive to justice, much less can private benevolence, or a regard to the interests of the party concern'd, be this motive. For what if he be my enemy, and has given me just cause to hate him? What if he be a vicious man, and deserves the hatred of all mankind? What if he be a miser, and can make no use of what I wou'd deprive him of? What if he be a profligate debauchee, and wou'd rather receive harm than benefit from large possessions? What if I be in necessity, and have urgent motives to acquire something to my family? In all these cases, the original motive to justice wou'd fail; and consequently the justice itself, and along with it all property, right, and obligation.

A rich man lies under a moral obligation to communicate to those in necessity a share of his superfluities. Were private benevolence the original motive to justice, a man wou'd not be oblig'd to leave others in the possession of more than he is oblig'd to give them. At least the difference wou'd be very inconsiderable. Men generally fix their affections more on what they are possess'd of, than on what they never enjoy'd: For this reason, it wou'd be greater cruelty to dispossess a man of any thing, than not to give it him. But who will assert, that this is the only foundation of justice?

Besides, we must consider, that the chief reason, why men attach themselves so much to their possessions is, that they consider them as their property, and as secur'd to them inviolably by the laws of society. But this is a secondary consideration, and dependent on the preceding notions of justice and property.

A man's property is suppos'd to be fenc'd against every mortal, in every possible case. But private benevolence is, and ought to be, weaker in some persons, than in others: And in many, or indeed in most persons, must absolutely fail. Private benevolence, therefore, is not the original motive of justice.

From all this it follows, that we have no real or universal motive for observing the laws of equity, but the very equity and merit of that observance; and as no action can be equitable or meritorious, where it cannot arise from some separate motive, there is here an evident sophistry and reasoning in a circle. Unless, therefore, we will allow, that nature has establish'd a sophistry, and render'd it necessary and unavoidable, we must allow, that the sense of justice and injustice is not deriv'd from nature, but arises artificially, tho' necessarily from education, and human conventions.

I shall add, as a corollary to this reasoning, that since no action can be laudable or blameable, without some motives or impelling passions, distinct from the sense of morals, these distinct passions must have a great influence on that sense. 'Tis according to their general force in human nature, that we blame or praise. In judging of the beauty of animal bodies, we always carry in our eye the œconomy of a certain species; and where the limbs and features observe that proportion, which is common to the species, we pronounce them handsome and beautiful. In like manner we always consider the natural and usual force of the passions, when we determine concerning vice and virtue; and if the passions depart very much from the common measures on either side, they are always disapprov'd as vicious. A man naturally loves his children better than his nephews, his nephews better than his cousins, his cousins better than strangers, where every thing else is equal. Hence ari-

se our common measures of duty, in preferring the one to the other. Our sense of duty always follows the common and natural course of our passions.

To avoid giving offence, I must here observe, that when I deny justice to be a natural virtue, I make use of the word, natural, only as oppos'd to artificial. In another sense of the word; as no principle of the human mind is more natural than a sense of virtue; so no virtue is more natural than justice. Mankind is an inventive species; and where an invention is obvious and absolutely necessary, it may as properly be said to be natural as any thing that proceeds immediately from original principles, without the intervention of thought or reflexion. Tho' the rules of justice be artificial, they are not arbitrary. Nor is the expression improper to call them Laws of Nature; if by natural we understand what is common to any species, or even if we confine it to mean what is inseparable from the species.

SECTION II. Of the origin of justice and property.

We now proceed to examine two questions, viz. concerning the manner, in which the rules of justice are establish'd by the artifice of men; and concerning the reasons, which determine us to attribute to the observance or neglect of these rules a moral beauty and deformity. These questions will appear afterwards to be distinct. We shall begin with the former.

Of all the animals, with which this globe is peopled, there is none towards whom nature seems, at first sight, to have exercis'd more cruelty than towards man, in the numberless wants and necessities, with which she has loaded him, and in the slender means, which she affords to the relieving these necessities. In other creatures these two particulars generally compensate each other. If we consider the lion as a voracious and carnivorous animal, we shall easily discover him to be very necessitous; but if we turn our eye to his make and temper, his agility, his courage, his arms, and his force, we shall find, that his advantages hold proportion with his wants. The sheep and ox are depriv'd of all these advantages; but their appetites are moderate, and their food is of easy purchase. In man alone, this unnatural conjunction of infirmity, and of necessity, may be observ'd in its greatest perfection. Not only the food, which is requir'd for his sustenance, flies his search and approach, or at least requires his labour to be produc'd, but he must be possess'd of cloaths and lodging, to defend him against the injuries of the weather; tho' to consider him only in himself, he is provided neither with arms, nor force, nor other natural abilities, which are in any degree answerable to so many necessities.

'Tis by society alone he is able to supply his defects, and raise himself up to an equality with his fellow-creatures, and even acquire a superiority above them. By society all his infirmities are compensated; and tho' in that situation his wants multiply every moment upon him, yet his abilities are still more augmented, and leave him in every respect more satisfied and happy, than 'tis possible for him, in his savage and solitary condition, ever to become. When every individual person labours apart, and only for himself, his force is too small to execute any considerable work; his labour being employ'd in supplying all his different necessities, he never attains a perfection in any particular art; and as his force and success are not at all times equal, the least failure in either of these particulars must be attended with inevitable ruin and misery. Society provides a remedy for these three inconveniences. By the conjunction of forces, our power is augmented: By the partition of employments,

our ability encreases: And by mutual succour we are less expos'd to fortune and accidents. 'Tis by this additional force, ability, and security, that society becomes advantageous.

But in order to form society, 'tis requisite not only that it be advantageous, but also that men be sensible of these advantages; and 'tis impossible, in their wild uncultivated state, that by study and reflexion alone, they should ever be able to attain this knowledge. Most fortunately, therefore, there is conjoin'd to those necessities, whose remedies are remote and obscure, another necessity, which having a present and more obvious remedy, may justly be regarded as the first and original principle of human society. This necessity is no other than that natural appetite betwixt the sexes, which unites them together, and preserves their union, till a new tye takes place in their concern for their common offspring. This new concern becomes also a principle of union betwixt the parents and offspring, and forms a more numerous society; where the parents govern by the advantage of their superior strength and wisdom, and at the same time are restrain'd in the exercise of their authority by that natural affection, which they bear their children. In a little time, custom and habit operating on the tender minds of the children, makes them sensible of the advantages, which they may reap from society, as well as fashions them by degrees for it, by rubbing off those rough corners and untoward affections, which prevent their coalition.

For it must be confest, that however the circumstances of human nature may render an union necessary, and however those passions of lust and natural affection may seem to render it unavoidable; yet there are other particulars in our natural temper, and in our outward circumstances, which are very incommodious, and are even contrary to the requisite conjunction. Among the former, we may justly esteem our selfishness to be the most considerable. I am sensible, that, generally speaking, the representations of this quality have been carried much too far; and that the descriptions, which certain philosophers delight so much to form of mankind in this particular, are as wide of nature as any accounts of monsters, which we meet with in fables and romances. So far from thinking, that men have no affection for any thing beyond themselves, I am of opinion, that tho' it be rare to meet with one, who loves any single person better than himself; yet 'tis as rare to meet with one, in whom all the kind affections, taken together, do not over-balance all the selfish. Consult common experience: Do you not see, that tho' the whole expence of the family be generally under the direction of the master of it, yet there are few that do not bestow the largest part of their fortunes on the pleasures of their wives, and the education of their children, reserving the smallest portion for their own proper use and entertainment. This is what we may observe concerning such as have those endearing ties; and may presume, that the case would be the same with others, were they plac'd in a like situation.

But tho' this generosity must be acknowledg'd to the honour of human nature, we may at the same time remark, that so noble an affection, instead of fitting men for large societies, is almost as contrary to them, as the most narrow selfishness. For while each person loves himself better than any other single person, and in his love to others bears the greatest affection to his relations and acquaintance, this must necessarily produce an opposition of passions, and a consequent opposition of actions; which cannot but be dangerous to the new-establish'd union.

'Tis however worth while to remark, that this contrariety of passions wou'd be attended with but small danger, did it not concur with a peculiarity in our outward circumstances, which affords it an opportunity of exerting itself. There are three different species of goods, which we are possess'd of; the internal satisfaction of our minds, the external advantages of our body, and the enjoyment of such possessions as we have acquir'd by our industry and good fortune. We are perfectly secure in

the enjoyment of the first. The second may be ravish'd from us, but can be of no advantage to him who deprives us of them. The last only are both expos'd to the violence of others, and may be transferr'd without suffering any loss or alteration; while at the same time, there is not a sufficient quantity of them to supply every one's desires and necessities. As the improvement, therefore, of these goods is the chief advantage of society, so the instability of their possession, along with their scarcity, is the chief impediment.

In vain shou'd we expect to find, in uncultivated nature, a remedy to this inconvenience; or hope for any inartificial principle of the human mind, which might controul those partial affections, and make us overcome the temptations arising from our circumstances. The idea of justice can never serve to this purpose, or be taken for a natural principle, capable of inspiring men with an equitable conduct towards each other. That virtue, as it is now understood, wou'd never have been dream'd of among rude and savage men. For the notion of injury or injustice implies an immorality or vice committed against some other person: And as every immorality is deriv'd from some defect or unsoundness of the passions, and as this defect must be judg'd of, in a great measure, from the ordinary course of nature in the constitution of the mind; 'twill be easy to know, whether we be guilty of any immorality, with regard to others, by considering the natural, and usual force of those several affections, which are directed towards them. Now it appears, that in the original frame of our mind, our strongest attention is confin'd to ourselves; our next is extended to our relations and acquaintance; and 'tis only the weakest which reaches to strangers and indifferent persons. This partiality, then, and unequal affection, must not only have an influence on our behaviour and conduct in society, but even on our ideas of vice and virtue; so as to make us regard any remarkable transgression of such a degree of partiality, either by too great an enlargement, or contraction of the affections, as vicious and immoral. This we may observe in our common judgments concerning actions, where we blame a person, who either centers all his affections in his family, or is so regardless of them, as, in any opposition of interest, to give the preference to a stranger, or mere chance acquaintance. From all which it follows, that our natural uncultivated ideas of morality, instead of providing a remedy for the partiality of our affections, do rather conform themselves to that partiality, and give it an additional force and influence.

The remedy, then, is not deriv'd from nature, but from artifice; or more properly speaking, nature provides a remedy in the judgment and understanding, for what is irregular and incommodious in the affections. For when men, from their early education in society, have become sensible of the infinite advantages that result from it, and have besides acquir'd a new affection to company and conversation; and when they have observ'd, that the principal disturbance in society arises from those goods, which we call external, and from their looseness and easy transition from one person to another; they must seek for a remedy, by putting these goods, as far as possible, on the same footing with the fix'd and constant advantages of the mind and body. This can be done after no other manner, than by a convention enter'd into by all the members of the society to bestow stability on the possession of those external goods, and leave every one in the peaceable enjoyment of what he may acquire by his fortune and industry. By this means, every one knows what he may safely possess; and the passions are restrain'd in their partial and contradictory motions. Nor is such a restraint contrary to these passions; for if so, it cou'd never be enter'd into, nor maintain'd; but it is only contrary to their heedless and impetuous movement. Instead of departing from our own interest, or from that of our nearest friends, by abstaining from the possessions of others, we cannot better consult both these interests, than by such a convention; because it is by that means we maintain society, which is so necessary to their well-being and subsistence, as well as to our own.

This convention is not of the nature of a promise: For even promises themselves, as we shall see afterwards, arise from human conventions. It is only a general sense of common interest; which sense all the members of the society express to one another, and which induces them to regulate their conduct by certain rules. I observe, that it will be for my interest to leave another in the possession of his goods, provided he will act in the same manner with regard to me. He is sensible of a like interest in the regulation of his conduct. When this common sense of interest is mutually express'd, and is known to both, it produces a suitable resolution and behaviour. And this may properly enough be call'd a convention or agreement betwixt us, tho' without the interposition of a promise; since the actions of each of us have a reference to those of the other, and are perform'd upon the supposition, that something is to be perform'd on the other part. Two men, who pull the oars of a boat, do it by an agreement or convention, tho' they have never given promises to each other. Nor is the rule concerning the stability of possession the less deriv'd from human conventions, that it arises gradually, and acquires force by a slow progression, and by our repeated experience of the inconveniences of transgressing it. On the contrary, this experience assures us still more, that the sense of interest has become common to all our fellows, and gives us a confidence of the future regularity of their conduct: And 'tis only on the expectation of this, that our moderation and abstinence are founded. In like manner are languages gradually establish'd by human conventions without any promise. In like manner do gold and silver become the common measures of exchange, and are esteem'd sufficient payment for what is of a hundred times their value.

After this convention, concerning abstinence from the possessions of others, is enter'd into, and every one has acquir'd a stability in his possessions, there immediately arise the ideas of justice and injustice; as also those of property, right, and obligation. The latter are altogether unintelligible without first understanding the former. Our property is nothing but those goods, whose constant possession is establish'd by the laws of society; that is, by the laws of justice. Those, therefore, who make use of the words property, or right, or obligation, before they have explain'd the origin of justice, or even make use of them in that explication, are guilty of a very gross fallacy, and can never reason upon any solid foundation. A man's property is some object related to him. This relation is not natural, but moral, and founded on justice. 'Tis very preposterous, therefore, to imagine, that we can have any idea of property, without fully comprehending the nature of justice, and shewing its origin in the artifice and contrivance of men. The origin of justice explains that of property. The same artifice gives rise to both. As our first and most natural sentiment of morals is founded on the nature of our passions, and gives the preference to ourselves and friends, above strangers; 'tis impossible there can be naturally any such thing as a fix'd right or property, while the opposite passions of men impel them in contrary directions, and are not restrain'd by any convention or agreement.

No one can doubt, that the convention for the distinction of property, and for the stability of possession, is of all circumstances the most necessary to the establishment of human society, and that after the agreement for the fixing and observing of this rule, there remains little or nothing to be done towards settling a perfect harmony and concord. All the other passions, beside this of interest, are either easily restrain'd, or are not of such pernicious consequence, when indulg'd. Vanity is rather to be esteem'd a social passion, and a bond of union among men. Pity and love are to be consider'd in the same light. And as to envy and revenge, tho' pernicious, they operate only by intervals, and are directed against particular persons, whom we consider as our superiors or enemies. This avidity alone, of acquiring goods and possessions for ourselves and our nearest friends, is insatiable, per-

petual, universal, and directly destructive of society. There scarce is any one, who is not actuated by it; and there is no one, who has not reason to fear from it, when it acts without any restraint, and gives way to its first and most natural movements. So that upon the whole, we are to esteem the difficulties in the establishment of society, to be greater or less, according to those we encounter in regulating and restraining this passion.

'Tis certain, that no affection of the human mind has both a sufficient force, and a proper direction to counter-balance the love of gain, and render men fit members of society, by making them abstain from the possessions of others. Benevolence to strangers is too weak for this purpose; and as to the other passions, they rather inflame this avidity, when we observe, that the larger our possessions are, the more ability we have of gratifying all our appetites. There is no passion, therefore, capable of controlling the interested affection, but the very affection itself, by an alteration of its direction. Now this alteration must necessarily take place upon the least reflection; since 'tis evident, that the passion is much better satisfy'd by its restraint, than by its liberty, and that in preserving society, we make much greater advances in the acquiring possessions, than in the solitary and forlorn condition, which must follow upon violence and an universal licence. The question, therefore, concerning the wickedness or goodness of human nature, enters not in the least into that other question concerning the origin of society; nor is there any thing to be consider'd but the degrees of men's sagacity or folly. For whether the passion of self-interest be esteemed vicious or virtuous, 'tis all a case; since itself alone restrains it: So that if it be virtuous, men become social by their virtue; if vicious, their vice has the same effect.

Now as 'tis by establishing the rule for the stability of possession, that this passion restrains itself; if that rule be very abstruse, and of difficult invention; society must be esteem'd, in a manner, accidental, and the effect of many ages. But if it be found, that nothing can be more simple and obvious than that rule; that every parent, in order to preserve peace among his children, must establish it; and that these first rudiments of justice must every day be improv'd, as the society enlarges: If all this appear evident, as it certainly must, we may conclude, that 'tis utterly impossible for men to remain any considerable time in that savage condition, which precedes society; but that his very first state and situation may justly be esteem'd social. This, however, hinders not, but that philosophers may, if they please, extend their reasoning to the suppos'd state of nature; provided they allow it to be a mere philosophical fiction, which never had, and never cou'd have any reality. Human nature being compos'd of two principal parts, which are requisite in all its actions, the affections and understanding; 'tis certain, that the blind motions of the former, without the direction of the latter, incapacitate men for society: And it may be allow'd us to consider separately the effects, that result from the separate operations of these two component parts of the mind. The same liberty may be permitted to moral, which is allow'd to natural philosophers; and 'tis very usual with the latter to consider any motion as compounded and consisting of two parts separate from each other, tho' at the same time they acknowledge it to be in itself uncompounded and inseparable.

This state of nature, therefore, is to be regarded as a mere fiction, not unlike that of the golden age, which poets have invented; only with this difference, that the former is describ'd as full of war, violence and injustice; whereas the latter is painted out to us, as the most charming and most peaceable condition, that can possibly be imagin'd. The seasons, in that first age of nature, were so temperate, if we may believe the poets, that there was no necessity for men to provide themselves with cloaths and houses as a security against the violence of heat and cold. The rivers flow'd with wine and milk: The oaks yielded honey; and nature spontaneously produc'd her greatest delicacies. Nor were

these the chief advantages of that happy age. The storms and tempests were not alone remov'd from nature; but those more furious tempests were unknown to human breasts, which now cause such uproar, and engender such confusion. Avarice, ambition, cruelty, selfishness, were never heard of: Cordial affection, compassion, sympathy, were the only movements, with which the human mind was yet acquainted. Even the distinction of mine and thine was banish'd from that happy race of mortals, and carry'd with them the very notions of property and obligation, justice and injustice.

This, no doubt, is to be regarded as an idle fiction; but yet deserves our attention, because nothing can more evidently shew the origin of those virtues, which are the subjects of our present enquiry. I have already observ'd, that justice takes its rise from human conventions; and that these are intended as a remedy to some inconveniences, which proceed from the concurrence of certain qualities of the human mind with the situation of external objects. The qualities of the mind are selfishness and limited generosity: And the situation of external objects is their easy change, join'd to their scarcity in comparison of the wants and desires of men. But however philosophers may have been bewilder'd in those speculations, poets have been guided more infallibly, by a certain taste or common instinct, which in most kinds of reasoning goes farther than any of that art and philosophy, with which we have been yet acquainted. They easily perceiv'd, if every man had a tender regard for another, or if nature supplied abundantly all our wants and desires, that the jealousy of interest, which justice supposes, could no longer have place; nor would there be any occasion for those distinctions and limits of property and possession, which at present are in use among mankind. Encrease to a sufficient degree the benevolence of men, or the bounty of nature, and you render justice useless, by supplying its place with much nobler virtues, and more valuable blessings. The selfishness of men is animated by the few possessions we have, in proportion to our wants; and 'tis to restrain this selfishness, that men have been oblig'd to separate themselves from the community, and to distinguish betwixt their own goods and those of others.

Nor need we have recourse to the fictions of poets to learn this; but beside the reason of the thing, may discover the same truth by common experience and observation. 'Tis easy to remark, that a cordial affection renders all things common among friends; and that married people in particular mutually lose their property, and are unacquainted with the mine and thine, which are so necessary, and yet cause such disturbance in human society. The same effect arises from any alteration in the circumstances of mankind; as when there is such a plenty of any thing as satisfies all the desires of men: In which case the distinction of property is entirely lost, and every thing remains in common. This we may observe with regard to air and water, tho' the most valuable of all external objects; and may easily conclude, that if men were supplied with every thing in the same abundance, or if every one had the same affection and tender regard for every one as for himself; justice and injustice would be equally unknown among mankind.

Here then is a proposition, which, I think, may be regarded as certain, that 'tis only from the selfishness and confin'd generosity of men, along with the scanty provision nature has made for his wants, that justice derives its origin. If we look backward we shall find, that this proposition bestows an additional force on some of those observations, which we have already made on this subject.

First, we may conclude from it, that a regard to public interest, or a strong extensive benevolence, is not our first and original motive for the observation of the rules of justice; since 'tis allow'd, that if men were endow'd with such a benevolence, these rules would never have been dreamt of.

Secondly, we may conclude from the same principle, that the sense of justice is not founded on reason, or on the discovery of certain connexions and relations of ideas, which are eternal, immutable, and universally obligatory. For since it is confest, that such an alteration as that above-mention'd, in the temper and circumstances of mankind, wou'd entirely alter our duties and obligations, 'tis necessary upon the common system, that the sense of virtue is deriv'd from reason, to shew the change which this must produce in the relations and ideas. But 'tis evident, that the only cause, why the extensive generosity of man, and the perfect abundance of every thing, wou'd destroy the very idea of justice, is because they render it useless; and that, on the other hand, his confin'd benevolence, and his necessitous condition, give rise to that virtue, only by making it requisite to the publick interest, and to that of every individual. 'Twas therefore a concern for our own, and the publick interest, which made us establish the laws of justice; and nothing can be more certain, than that it is not any relation of ideas, which gives us this concern, but our impressions and sentiments, without which every thing in nature is perfectly indifferent to us, and can never in the least affect us. The sense of justice, therefore, is not founded on our ideas, but on our impressions.

Thirdly, we may farther confirm the foregoing proposition, that those impressions, which give rise to this sense of justice, are not natural to the mind of man, but arise from artifice and human conventions. For since any considerable alteration of temper and circumstances destroys equally justice and injustice; and since such an alteration has an effect only by changing our own and the publick interest; it follows, that the first establishment of the rules of justice depends on these different interests. But if men pursu'd the publick interest naturally, and with a hearty affection, they wou'd never have dream'd of restraining each other by these rules; and if they pursu'd their own interest, without any precaution, they wou'd run head-long into every kind of injustice and violence. These rules, therefore, are artificial, and seek their end in an oblique and indirect manner; nor is the interest, which gives rise to them, of a kind that cou'd be pursu'd by the natural and inartificial passions of men.

To make this more evident, consider, that tho' the rules of justice are establish'd merely by interest, their connexion with interest is somewhat singular, and is different from what may be observ'd on other occasions. A single act of justice is frequently contrary to public interest; and were it to stand alone, without being follow'd by other acts, may, in itself, be very prejudicial to society. When a man of merit, of a beneficent disposition, restores a great fortune to a miser, or a seditious bigot, he has acted justly and laudably, but the public is a real sufferer. Nor is every single act of justice, consider'd apart, more conducive to private interest, than to public; and 'tis easily conceiv'd how a man may impoverish himself by a signal instance of integrity, and have reason to wish, that with regard to that single act, the laws of justice were for a moment suspended in the universe. But however single acts of justice may be contrary, either to public or private interest, 'tis certain, that the whole plan or scheme is highly conducive, or indeed absolutely requisite, both to the support of society, and the well-being of every individual. 'Tis impossible to separate the good from the ill. Property must be stable, and must be fix'd by general rules. Tho' in one instance the public be a sufferer, this momentary ill is amply compensated by the steady prosecution of the rule, and by the peace and order, which it establishes in society. And even every individual person must find himself a gainer, on ballancing the account; since, without justice, society must immediately dissolve, and every one must fall into that savage and solitary condition, which is infinitely worse than the worse situation that can possibly be suppos'd in society. When therefore men have had experience enough to observe, that whatever may be the consequence of any single act of justice, perform'd by a single per-

son, yet the whole system of actions, concurr'd in by the whole society, is infinitely advantageous to the whole, and to every part; it is not long before justice and property take place. Every member of society is sensible of this interest: Every one expresses this sense to his fellows, along with the resolution he has taken of squaring his actions by it, on condition that others will do the same. No more is requisite to induce any one of them to perform an act of justice, who has the first opportunity. This becomes an example to others. And thus justice establishes itself by a kind of convention or agreement; that is, by a sense of interest, suppos'd to be common to all, and where every single act is perform'd in expectation that others are to perform the like. Without such a convention, no one wou'd ever have dream'd, that there was such a virtue as justice, or have been induc'd to conform his actions to it. Taking any single act, my justice may be pernicious in every respect; and 'tis only upon the supposition, that others are to imitate my example, that I can be induc'd to embrace that virtue; since nothing but this combination can render justice advantageous, or afford me any motives to conform my self to its rules.

We come now to the second question we propos'd, viz. Why we annex the idea of virtue to justice, and of vice to injustice. This question will not detain us long after the principles, which we have already establish'd. All we can say of it at present will be dispatch'd in a few words: And for farther satisfaction, the reader must wait till we come to the third part of this book. The natural obligation to justice, viz. interest, has been fully explain'd; but as to the moral obligation, or the sentiment of right and wrong, 'twill first be requisite to examine the natural virtues, before we can give a full and satisfactory account of it.

After men have found by experience, that their selfishness and confin'd generosity, acting at their liberty, totally incapacitate them for society; and at the same time have observ'd, that society is necessary to the satisfaction of those very passions, they are naturally induc'd to lay themselves under the restraint of such rules, as may render their commerce more safe and commodious. To the imposition then, and observance of these rules, both in general, and in every particular instance, they are at first induc'd only by a regard to interest; and this motive, on the first formation of society, is sufficiently strong and forcible. But when society has become numerous, and has encreas'd to a tribe or nation, this interest is more remote; nor do men so readily perceive, that disorder and confusion follow upon every breach of these rules, as in a more narrow and contracted society. But tho' in our own actions we may frequently lose sight of that interest, which we have in maintaining order, and may follow a lesser and more present interest, we never fail to observe the prejudice we receive, either mediately or immediately, from the injustice of others; as not being in that case either blinded by passion, or byass'd by any contrary temptation. Nay when the injustice is so distant from us, as no way to affect our interest, it still displeases us; because we consider it as prejudicial to human society, and pernicious to every one that approaches the person guilty of it. We partake of their uneasiness by sympathy; and as every thing, which gives uneasiness in human actions, upon the general survey, is call'd Vice, and whatever produces satisfaction, in the same manner, is denominated Virtue; this is the reason why the sense of moral good and evil follows upon justice and injustice. And tho' this sense, in the present case, be deriv'd only from contemplating the actions of others, yet we fail not to extend it even to our own actions. The general rule reaches beyond those instances, from which it arose; while at the same time we naturally sympathize with others in the sentiments they entertain of us. Thus self-interest is the original motive to the establishment of justice: but a sympathy with public interest is the source of the moral approbation, which attends that virtue.

Tho' this progress of the sentiments be natural, and even necessary, 'tis certain, that it is here forwarded by the artifice of politicians, who, in order to govern men more easily, and preserve peace in human society, have endeavour'd to produce an esteem for justice, and an abhorrence of injustice. This, no doubt, must have its effect; but nothing can be more evident, than that the matter has been carry'd too far by certain writers on morals, who seem to have employ'd their utmost efforts to extirpate all sense of virtue from among mankind. Any artifice of politicians may assist nature in the producing of those sentiments, which she suggests to us, and may even on some occasions, produce alone an approbation or esteem for any particular action; but 'tis impossible it should be the sole cause of the distinction we make betwixt vice and virtue. For if nature did not aid us in this particular, 'twou'd be in vain for politicians to talk of honourable or dishonourable, praiseworthy or blamable. These words wou'd be perfectly unintelligible, and wou'd no more have any idea annex'd to them, than if they were of a tongue perfectly unknown to us. The utmost politicians can perform, is, to extend the natural sentiments beyond their original bounds; but still nature must furnish the materials, and give us some notion of moral distinctions.

As publick praise and blame encrease our esteem for justice; so private education and instruction contribute to the same effect. For as parents easily observe, that a man is the more useful, both to himself and others, the greater degree of probity and honour he is endow'd with; and that those principles have greater force, when custom and education assist interest and reflexion: For these reasons they are induc'd to inculcate on their children, from their earliest infancy, the principles of probity, and teach them to regard the observance of those rules, by which society is maintain'd, as worthy and honourable, and their violation as base and infamous. By this means the sentiments of honour may take root in their tender minds, and acquire such firmness and solidity, that they may fall little short of those principles, which are the most essential to our natures, and the most deeply radicated in our internal constitution.

What farther contributes to encrease their solidity, is the interest of our reputation, after the opinion, that a merit or demerit attends justice or injustice, is once firmly establish'd among mankind. There is nothing, which touches us more nearly than our reputation, and nothing on which our reputation more depends than our conduct, with relation to the property of others. For this reason, every one, who has any regard to his character, or who intends to live on good terms with mankind, must fix an inviolable law to himself, never, by any temptation, to be induc'd to violate those principles, which are essential to a man of probity and honour.

I shall make only one observation before I leave this subject, viz. that tho' I assert, that in the state of nature, or that imaginary state, which preceded society, there be neither justice nor injustice, yet I assert not, that it was allowable, in such a state, to violate the property of others. I only maintain, that there was no such thing as property; and consequently cou'd be no such thing as justice or injustice. I shall have occasion to make a similar reflexion with regard to promises, when I come to treat of them; and I hope this reflexion, when duly weigh'd, will suffice to remove all odium from the foregoing opinions, with regard to justice and injustice.

SECTION III. Of the rules, which determine property.

Tho' the establishment of the rule, concerning the stability of possession, be not only useful, but even absolutely necessary to human society, it can never serve to any purpose, while it remains in such general terms. Some method must be shewn, by which we may distinguish what particular goods are to be assign'd to each particular person, while the rest of mankind are excluded from their possession and enjoyment. Our next business, then, must be to discover the reasons which modify this general rule, and fit it to the common use and practice of the world.

'Tis obvious, that those reasons are not deriv'd from any utility or advantage, which either the particular person or the public may reap from his enjoyment of any particular goods, beyond what wou'd result from the possession of them by any other person. 'Twere better, no doubt, that every one were possess'd of what is most suitable to him, and proper for his use: But besides, that this relation of fitness may be common to several at once, 'tis liable to so many controversies, and men are so partial and passionate in judging of these controversies, that such a loose and uncertain rule wou'd be absolutely incompatible with the peace of human society. The convention concerning the stability of possession is enter'd into, in order to cut off all occasions of discord and contention; and this end wou'd never be attain'd, were we allow'd to apply this rule differently in every particular case, according to every particular utility, which might be discover'd in such an application. Justice, in her decisions, never regards the fitness or unfitness of objects to particular persons, but conducts herself by more extensive views. Whether a man be generous, or a miser, he is equally well receiv'd by her, and obtains with the same facility a decision in his favour, even for what is entirely useless to him.

It follows, therefore, that the general rule, that possession must be stable, is not apply'd by particular judgments, but by other general rules, which must extend to the whole society, and be inflexible either by spite or favour. To illustrate this, I propose the following instance. I first consider men in their savage and solitary condition; and suppose, that being sensible of the misery of that state, and foreseeing the advantages that wou'd result from society, they seek each other's company, and make an offer of mutual protection and assistance. I also suppose, that they are endow'd with such sagacity as immediately to perceive, that the chief impediment to this project of society and partnership lies in the avidity and selfishness of their natural temper; to remedy which, they enter into a convention for the stability of possession, and for mutual restraint and forbearance. I am sensible, that this method of proceeding is not altogether natural; but besides that I here only suppose those reflexions to be form'd at once, which in fact arise insensibly and by degrees; besides this, I say, 'tis very possible, that several persons, being by different accidents separated from the societies, to which they formerly belong'd, may be oblig'd to form a new society among themselves; in which case they are entirely in the situation above-mention'd.

'Tis evident, then, that their first difficulty, in this situation, after the general convention for the establishment of society, and for the constancy of possession, is, how to separate their possessions, and assign to each his particular portion, which he must for the future inalterably enjoy. This difficulty will not detain them long; but it must immediately occur to them, as the most natural expedient, that every one continue to enjoy what he is at present master of, and that property or constant possession be conjoin'd to the immediate possession. Such is the effect of custom, that it not only reconciles us to any thing we have long enjoy'd, but even gives us an affection for it, and makes us

prefer it to other objects, which may be more valuable, but are less known to us. What has long lain under our eye, and has often been employ'd to our advantage, that we are always the most unwilling to part with; but can easily live without possessions, which we never have enjoy'd, and are not accusom'd to. 'Tis evident, therefore, that men wou'd easily acquiesce in this expedient, that every one continue to enjoy what he is at present possess'dof; and this is the reason, why they wou'd so naturally agree in preferring it⁶⁹.

But we may observe, that tho' the rule of the assignment of property to the present possessor be natural, and by that means useful, yet its utility extends not beyond the first formation of society; nor wou'd any thing be more pernicious, than the constant observance of it; by which restitution wou'd be excluded, and every injustice wou'd be authoriz'd and rewarded. We must, therefore, seek for some other circumstance, that may give rise to property after society is once establish'd; and of this kind, I find four most considerable, viz. Occupation, Prescription, Accession, and Succession. We shall briefly examine each of these, beginning with Occupation.

The possession of all external goods is changeable and uncertain; which is one of the most considerable impediments to the establishment of society, and is the reason why, by universal agreement, express or tacite, men restrain themselves by what we now call the rules of justice and equity. The misery of the condition, which precedes this restraint, is the cause why we submit to that remedy as quickly as possible; and this affords us an easy reason, why we annex the idea of property to the first possession, or to occupation. Men are unwilling to leave property in suspence, even for the shortest time, or open the least door to violence and disorder. To which we may add, that the first possession always engages the attention most; and did we neglect it, there wou'd be no colour of reason for assigning property to any succeeding possession⁷⁰.

There remains nothing, but to determine exactly, what is meant by possession; and this is not so easy as may at first sight be imagin'd. We are said to be in possession of any thing, not only when we immediately touch it, but also when we are so situated with respect to it, as to have it in our power to use it; and may move, alter, or destroy it, according to our present pleasure or advantage. This relation, then, is a species of cause and effect; and as property is nothing but a stable possession, deriv'd from the rules of justice, or the conventions of men, 'tis to be consider'd as the same species of relation. But here we may observe, that as the power of using any object becomes more or less certain, according as the interruptions we may meet with are more or less probable; and as this probability may increase by insensible degrees; 'tis in many cases impossible to determine when possession begins or ends; nor is there any certain standard, by which we can decide such controversies. A wild boar, that falls into our snares, is deem'd to be in our possession, if it be impossible for him to escape. But what do we mean by impossible? How do we separate this impossibility from an improbability? And how distinguish that exactly from a probability? Mark the precise limits of the one and the other, and shew the standard, by which we may decide all disputes that may arise, and, as we find by experience, frequently do arise upon this subject⁷¹.

But such disputes may not only arise concerning the real existence of property and possession, but also concerning their extent; and these disputes are often susceptible of no decision, or can be decided by no other faculty than the imagination. A person who lands on the shore of a small island, that is desart and uncultivated, is deem'd its possessor from the very first moment, and acquires the property of the whole; because the object is there bounded and circumscrib'd in the fancy, and at the same time is proportion'd to the new possessor. The same person landing on a desart island, as

large as Great Britain, extends his property no farther than his immediate possession; tho' a numerous colony are esteem'd the proprietors of the whole from the instant of their debarkment.

But it often happens, that the title of first possession becomes obscure thro' time; and that 'tis impossible to determine many controversies, which may arise concerning it. In that case long possession or prescription naturally takes place, and gives a person a sufficient property in any thing he enjoys. The nature of human society admits not of any great accuracy; nor can we always remount to the first origin of things, in order to determine their present condition. Any considerable space of time sets objects at such a distance, that they seem, in a manner, to lose their reality, and have as little influence on the mind, as if they never had been in being. A man's title, that is clear and certain at present, will seem obscure and doubtful fifty years hence, even tho' the facts, on which it is founded, shou'd be prov'd with the greatest evidence and certainty. The same facts have not the same influence after so long an interval of time. And this may be receiv'd as a convincing argument for our preceding doctrine with regard to property and justice. Possession during a long tract of time conveys a title to any object. But as 'tis certain, that, however every thing be produc'd in time, there is nothing real, that is produc'd by time; it follows, that property being produc'd by time, is not any thing real in the objects, but is the offspring of the sentiments, on which alone time is found to have any influence⁷².

We acquire the property of objects by accession, when they are connected in an intimate manner with objects that are already our property, and at the same time are inferior to them. Thus the fruits of our garden, the offspring of our cattle, and the work of our slaves, are all of them esteem'd our property, even before possession. Where objects are connected together in the imagination, they are apt to be put on the same footing, and are commonly suppos'd to be endow'd with the same qualities. We readily pass from one to the other, and make no difference in our judgments concerning them; especially if the latter be inferior to the former⁷³.

The right of succession is a very natural one, from the presum'd consent of the parent or near relation, and from the general interest of mankind, which requires, that men's possession shou'd pass to those, who are dearest to them, in order to render them more industrious and frugal. Perhaps these causes are seconded by the influence of relation, or the association of ideas, by which we are naturally directed to consider the son after the parent's decease, and ascribe to him a title to his father's possessions. Those goods must become the property of some body: But of whom is the question. Here 'tis evident the persons children naturally present themselves to the mind; and being already connected to those possessions by means of their deceas'd parent, we are apt to connect them still farther by the relation of property. Of this there are many parallel instances⁷⁴.

SECTION IV.

Of the transference of property by consent.

However useful, or even necessary, the stability of possession may be to human society, 'tis attended with very considerable inconveniences. The relation of fitness or suitableness ought never to enter into consideration, in distributing the properties of mankind; but we must govern ourselves by rules, which are more general in their application, and more free from doubt and uncertainty. Of this kind is present possession upon the first establishment of society; and afterwards occupation, prescription, accession, and succession. As these depend very much on chance, they must frequently

prove contradictory both to men's wants and desires; and persons and possessions must often be very ill adjusted. This is a grand inconvenience, which calls for a remedy. To apply one directly, and allow every man to seize by violence what he judges to be fit for him, wou'd destroy society; and therefore the rules of justice seek some medium betwixt a rigid stability, and this changeable and uncertain adjustment. But there is no medium better than that obvious one, that possession and property shou'd always be stable, except when the proprietor consents to bestow them on some other person. This rule can have no ill consequence, in occasioning wars and dissensions; since the proprietor's consent, who alone is concern'd, is taken along in the alienation: And it may serve to many good purposes in adjusting property to persons. Different parts of the earth produce different commodities; and not only so, but different men both are by nature fitted for different employments, and attain to greater perfection in any one, when they confine themselves to it alone. All this requires a mutual exchange and commerce; for which reason the translation of property by consent is founded on a law of nature, as well as its stability without such a consent.

So far is determin'd by a plain utility and interest. But perhaps 'tis from more trivial reasons, that delivery, or a sensible transference of the object is commonly requir'd by civil laws, and also by the laws of nature, according to most authors, as a requisite circumstance in the translation of property. The property of an object, when taken for something real, without any reference to morality, or the sentiments of the mind, is a quality perfectly insensible, and even inconceivable; nor can we form any distinct notion, either of its stability or translation. This imperfection of our ideas is less sensibly felt with regard to its stability, as it engages less our attention, and is easily past over by the mind, without any scrupulous examination. But as the translation of property from one person to another is a more remarkable event, the defect of our ideas becomes more sensible on that occasion, and obliges us to turn ourselves on every side in search of some remedy. Now as nothing more enlivens any idea than a present impression, and a relation betwixt that impression and the idea; 'tis natural for us to seek some false light from this quarter. In order to aid the imagination in conceiving the transference of property, we take the sensible object, and actually transfer its possession to the person, on whom we wou'd bestow the property. The suppos'd resemblance of the actions, and the presence of this sensible delivery, deceive the mind, and make it fancy, that it conceives the mysterious transition of the property. And that this explication of the matter is just, appears hence, that men have invented a symbolical delivery, to satisfy the fancy, where the real one is impracticable. Thus the giving the keys of a granary is understood to be the delivery of the corn contain'd in it: The giving of stone and earth represents the delivery of a mannor. This is a kind of superstitious practice in civil laws, and in the laws of nature, resembling the Roman catholic superstitions in religion. As the Roman catholics represent the inconceivable mysteries of the Christian religion, and render them more present to the mind, by a taper, or habit, or grimace, which is suppos'd to resemble them; so lawyers and moralists have run into like inventions for the same reason, and have endeavour'd by those means to satisfy themselves concerning the transference of property by consent.

SECTION V. Of the obligation of promises.

That the rule of morality, which enjoins the performance of promises, is not natural, will sufficiently appear from these two propositions, which I proceed to prove, viz. that a promise wou'd not be intelligible, before human conventions had establish'd it; and that even if it were intelligible, it wou'd not be attended with any moral obligation.

I say, first, that a promise is not intelligible naturally, nor antecedent to human conventions; and that a man, unacquainted with society, could never enter into any engagements with another, even tho' they could perceive each other's thoughts by intuition. If promises be natural and intelligible, there must be some act of the mind attending these words, I promise; and on this act of the mind must the obligation depend. Let us, therefore, run over all the faculties of the soul, and see which of them is exerted in our promises.

The act of the mind, exprest by a promise, is not a resolution to perform any thing: For that alone never imposes any obligation. Nor is it a desire of such a performance: For we may bind ourselves without such a desire, or even with an aversion, declar'd and avow'd. Neither is it the willing of that action, which we promise to perform: For a promise always regards some future time, and the will has an influence only on present actions. It follows, therefore, that since the act of the mind, which enters into a promise, and produces its obligation, is neither the resolving, desiring, nor willing any particular performance, it must necessarily be the willing of that obligation, which arises from the promise. Nor is this only a conclusion of philosophy; but is entirely conformable to our common ways of thinking and of expressing ourselves, when we say that we are bound by our own consent, and that the obligation arises from our mere will and pleasure. The only question, then, is, whether there be not a manifest absurdity in supposing this act of the mind, and such an absurdity as no man cou'd fall into, whose ideas are not confounded with prejudice and the fallacious use of language.

All morality depends upon our sentiments; and when any action, or quality of the mind, pleases us after a certain manner, we say it is virtuous; and when the neglect, or non-performance of it, displeases us after a like manner, we say that we lie under an obligation to perform it. A change of the obligation supposes a change of the sentiment; and a creation of a new obligation supposes some new sentiment to arise. But 'tis certain we can naturally no more change our own sentiments, than the motions of the heavens; nor by a single act of our will, that is, by a promise, render any action agreeable or disagreeable, moral or immoral; which, without that act, wou'd have produc'd contrary impressions, or have been endow'd with different qualities. It wou'd be absurd, therefore, to will any new obligation, that is, any new sentiment of pain or pleasure; nor is it possible, that men cou'd naturally fall into so gross an absurdity. A promise, therefore, is naturally something altogether unintelligible, nor is there any act of the mind belonging to it⁷⁵.

But, secondly, if there was any act of the mind belonging to it, it could not naturally produce any obligation. This appears evidently from the foregoing reasoning. A promise creates a new obligation. A new obligation supposes new sentiments to arise. The will never creates new sentiments. There could not naturally, therefore, arise any obligation from a promise, even supposing the mind could fall into the absurdity of willing that obligation.

The same truth may be prov'd still more evidently by that reasoning, which prov'd justice in general to be an artificial virtue. No action can be requir'd of us as our duty, unless there be implanted in human nature some actuating passion or motive, capable of producing the action. This motive cannot be the sense of duty. A sense of duty supposes an antecedent obligation: And where an action is not requir'd by any natural passion, it cannot be requir'd by any natural obligation; since it may be omitted without proving any defect or imperfection in the mind and temper, and consequently without any vice. Now 'tis evident we have no motive leading us to the performance of promises, distinct from a sense of duty. If we thought, that promises had no moral obligation, we

never shou'd feel any inclination to observe them. This is not the case with the natural virtues. Tho' there was no obligation to relieve the miserable, our humanity wou'd lead us to it; and when we omit that duty, the immorality of the omission arises from its being a proof, that we want the natural sentiments of humanity. A father knows it to be his duty to take care of his children: But he has also a natural inclination to it. And if no human creature had that inclination, no one cou'd lie under any such obligation. But as there is naturally no inclination to observe promises, distinct from a sense of their obligation; it follows, that fidelity is no natural virtue, and that promises have no force, antecedent to human conventions.

If any one dissent from this, he must give a regular proof of these two propositions, viz. that there is a peculiar act of the mind, annex't to promises; and that consequent to this act of the mind, there arises an inclination to perform, distinct from a sense of duty. I presume, that it is impossible to prove either of these two points; and therefore I venture to conclude, that promises are human inventions, founded on the necessities and interests of society.

In order to discover these necessities and interests, we must consider the same qualities of human nature, which we have already found to give rise to the preceding laws of society. Men being naturally selfish, or endow'd only with a confin'd generosity, they are not easily induc'd to perform any action for the interest of strangers, except with a view to some reciprocal advantage, which they had no hope of obtaining but by such a performance. Now as it frequently happens, that these mutual performances cannot be finish'd at the same instant, 'tis necessary, that one party be contented to remain in uncertainty, and depend upon the gratitude of the other for a return of kindness. But so much corruption is there among men, that, generally speaking, this becomes but a slender security; and as the benefactor is here suppos'd to bestow his favours with a view to self-interest, this both takes off from the obligation, and sets an example of selfishness, which is the true mother of ingratitude. Were we, therefore, to follow the natural course of our passions and inclinations, we shou'd perform but few actions for the advantage of others, from disinterested views; because we are naturally very limited in our kindness and affection: And we shou'd perform as few of that kind, out of a regard to interest; because we cannot depend upon their gratitude. Here then is the mutual commerce of good offices in a manner lost among mankind, and every one reduc'd to his own skill and industry for his well-being and subsistence. The invention of the law of nature, concerning the stability of possession, has already render'd men tolerable to each other; that of the transference of property and possession by consent has begun to render them mutually advantageous: But still these laws of nature, however strictly observ'd, are not sufficient to render them so serviceable to each other, as by nature they are fitted to become. Tho' possession be stable, men may often reap but small advantage from it, while they are possess'd of a greater quantity of any species of goods than they have occasion for, and at the same time suffer by the want of others. The transference of property, which is the proper remedy for this inconvenience, cannot remedy it entirely; because it can only take place with regard to such objects as are present and individual, but not to such as are absent or general. One cannot transfer the property of a particular house, twenty leagues distant; because the consent cannot be attended with delivery, which is a requisite circumstance. Neither can one transfer the property of ten bushels of corn, or five hogsheads of wine, by the mere expression and consent; because these are only general terms, and have no direct relation to any particular heap of corn, or barrels of wine. Besides, the commerce of mankind is not confin'd to the barter of commodities, but may extend to services and actions, which we may exchange to our mutual interest and advantage. Your corn is ripe to-day; mine will be so to-morrow. 'Tis profitable for us both, that I shou'd labour with you to-day, and that you shou'd aid me to-morrow. I have no kindness for you,

and know you have as little for me. I will not, therefore, take any pains upon your account; and should I labour with you upon my own account, in expectation of a return, I know I shou'd be disappointed, and that I shou'd in vain depend upon your gratitude. Here then I leave you to labour alone: You treat me in the same manner. The seasons change; and both of us lose our harvests for want of mutual confidence and security.

All this is the effect of the natural and inherent principles and passions of human nature; and as these passions and principles are inalterable, it may be thought, that our conduct, which depends on them, must be so too, and that 'twou'd be in vain, either for moralists or politicians, to tamper with us, or attempt to change the usual course of our actions, with a view to public interest. And indeed, did the success of their designs depend upon their success in correcting the selfishness and ingratitude of men, they wou'd never make any progress, unless aided by omnipotence, which is alone able to new-mould the human mind, and change its character in such fundamental articles. All they can pretend to, is, to give a new direction to those natural passions, and teach us that we can better satisfy our appetites in an oblique and artificial manner, than by their headlong and impetuous motion. Hence I learn to do a service to another, without bearing him any real kindness; because I foresee, that he will return my service, in expectation of another of the same kind, and in order to maintain the same correspondence of good offices with me or with others. And accordingly, after I have serv'd him, and he is in possession of the advantage arising from my action, he is induc'd to perform his part, as foreseeing the consequences of his refusal.

But tho' this self-interested commerce of men begins to take place, and to predominate in society, it does not entirely abolish the more generous and noble intercourse of friendship and good offices. I may still do services to such persons as I love, and am more particularly acquainted with, without any prospect of advantage; and they may make me a return in the same manner, without any view but that of recompensing my past services. In order, therefore, to distinguish those two different sorts of commerce, the interested and the disinterested, there is a certain form of words invented for the former, by which we bind ourselves to the performance of any action. This form of words constitutes what we call a promise, which is the sanction of the interested commerce of mankind. When a man says he promises any thing, he in effect expresses a resolution of performing it; and along with that, by making use of this form of words, subjects himself to the penalty of never being trusted again in case of failure. A resolution is the natural act of the mind, which promises express: But were there no more than a resolution in the case, promises wou'd only declare our former motives, and wou'd not create any new motive or obligation. They are the conventions of men, which create a new motive, when experience has taught us, that human affairs wou'd be conducted much more for mutual advantage, were there certain symbols or signs instituted, by which we might give each other security of our conduct in any particular incident. After these signs are instituted, whoever uses them is immediately bound by his interest to execute his engagements, and must never expect to be trusted any more, if he refuse to perform what he promis'd.

Nor is that knowledge, which is requisite to make mankind sensible of this interest in the institution and observance of promises, to be esteem'd superior to the capacity of human nature, however savage and uncultivated. There needs but a very little practice of the world, to make us perceive all these consequences and advantages. The shortest experience of society discovers them to every mortal; and when each individual perceives the same sense of interest in all his fellows, he immediately performs his part of any contract, as being assur'd, that they will not be wanting in theirs. All of them, by concert, enter into a scheme of actions, calculated for common benefit, and agree to be

true to their word; nor is there any thing requisite to form this concert or convention, but that every one have a sense of interest in the faithful fulfilling of engagements, and express that sense to other members of the society. This immediately causes that interest to operate upon them; and interest is the first obligation to the performance of promises.

Afterwards a sentiment of morals concurs with interest, and becomes a new obligation upon mankind. This sentiment of morality, in the performance of promises, arises from the same principles as that in the abstinence from the property of others. Public interest, education, and the artifices of politicians, have the same effect in both cases. The difficulties, that occur to us, in supposing a moral obligation to attend promises, we either surmount or elude. For instance; the expression of a resolution is not commonly suppos'd to be obligatory; and we cannot readily conceive how the making use of a certain form of words shou'd be able to cause any material difference. Here, therefore, we feign a new act of the mind, which we call the willing an obligation; and on this we suppose the morality to depend. But we have prov'd already, that there is no such act of the mind, and consequently that promises impose no natural obligation.

To confirm this, we may subjoin some other reflexions concerning that will, which is suppos'd to enter into a promise, and to cause its obligation. 'Tis evident, that the will alone is never suppos'd to cause the obligation, but must be express'd by words or signs, in order to impose a tie upon any man. The expression being once brought in as subservient to the will, soon becomes the principal part of the promise; nor will a man be less bound by his word, tho' he secretly give a different direction to his intention, and with-hold himself both from a resolution, and from willing an obligation. But tho' the expression makes on most occasions the whole of the promise, yet it does not always so; and one, who shou'd make use of any expression, of which he knows not the meaning, and which he uses without any intention of binding himself, wou'd not certainly be bound by it. Nay, tho' he knows its meaning, yet if he uses it in jest only, and with such signs as shew evidently he has no serious intention of binding himself, he wou'd not lie under any obligation of performance; but 'tis necessary, that the words be a perfect expression of the will, without any contrary signs. Nay, even this we must not carry so far as to imagine, that one, whom, by our quickness of understanding, we conjecture, from certain signs, to have an intention of deceiving us, is not bound by his expression or verbal promise, if we accept of it; but must limit this conclusion to those cases, where the signs are of a different kind from those of deceit. All these contradictions are easily accounted for, if the obligation of promises be merely a human invention for the convenience of society; but will never be explain'd, if it be something real and natural, arising from any action of the mind or body.

I shall farther observe, that since every new promise imposes a new obligation of morality on the person who promises, and since this new obligation arises from his will; 'tis one of the most mysterious and incomprehensible operations that can possibly be imagin'd, and may even be compar'd to transubstantiation, or holy orders⁷⁶, where a certain form of words, along with a certain intention, changes entirely the nature of an external object, and even of a human creature. But tho' these mysteries be so far alike, 'tis very remarkable, that they differ widely in other particulars, and that this difference may be regarded as a strong proof of the difference of their origins. As the obligation of promises is an invention for the interest of society, 'tis warp'd into as many different forms as that interest requires, and even runs into direct contradictions, rather than lose sight of its object. But as those other monstrous doctrines are merely priestly inventions, and have no public interest in view, they are less disturb'd in their progress by new obstacles; and it must be own'd, that, after the first

absurdity, they follow more directly the current of reason and good sense. Theologians clearly perceiv'd, that the external form of words, being mere sound, require an intention to make them have any efficacy; and that this intention being once consider'd as a requisite circumstance, its absence must equally prevent the effect, whether avow'd or conceal'd, whether sincere or deceitful. Accordingly they have commonly determin'd, that the intention of the priest makes the sacrament, and that when he secretly withdraws his intention, he is highly criminal in himself; but still destroys the baptism, or communion, or holy orders. The terrible consequences of this doctrine were not able to hinder its taking place; as the inconvenience of a similar doctrine, with regard to promises, have prevented that doctrine from establishing itself. Men are always more concern'd about the present life than the future; and are apt to think the smallest evil, which regards the former, more important than the greatest, which regards the latter.

We may draw the same conclusion, concerning the origin of promises, from the force, which is suppos'd to invalidate all contracts, and to free us from their obligation. Such a principle is a proof, that promises have no natural obligation, and are mere artificial contrivances for the convenience and advantage of society. If we consider aright of the matter, force is not essentially different from any other motive of hope or fear, which may induce us to engage our word and lay ourselves under any obligation. A man, dangerously wounded, who promises a competent sum to a surgeon to cure him, wou'd certainly be bound to performance; tho' the case be not so much different from that of one, who promises a sum to a robber, as to produce so great a difference in our sentiments of morality, if these sentiments were not built entirely on public interest and convenience.

SECTION VI.

Some farther reflexions concerning justice and injustice.

We have now run over the three fundamental laws of nature, that of the stability of possession, of its transference by consent, and of the performance of promises. 'Tis on the strict observance of those three laws, that the peace and security of human society entirely depend; nor is there any possibility of establishing a good correspondence among men, where these are neglected. Society is absolutely necessary for the well-being of men; and these are as necessary to the support of society. Whatever restraint they may impose on the passions of men, they are the real offspring of those passions, and are only a more artful and more refin'd way of satisfying them. Nothing is more vigilant and inventive than our passions; and nothing is more obvious, than the convention for the observance of these rules. Nature has, therefore, trusted this affair entirely to the conduct of men, and has not plac'd in the mind any peculiar original principles, to determine us to a set of actions, into which the other principles of our frame and constitution were sufficient to lead us. And to convince us the more fully of this truth, we may here stop a moment, and from a review of the preceding reasonings may draw some new arguments, to prove that those laws, however necessary, are entirely artificial, and of human invention; and consequently that justice is an artificial, and not a natural virtue.

I. The first argument I shall make use of is deriv'd from the vulgar definition of justice. Justice is commonly defin'd to be a constant and perpetual will of giving every one his due. In this definition 'tis supposed, that there are such things as right and property, independent of justice, and antecedent to it; and that they wou'd have subsisted, tho' men had never dreamt of practising such a virtue. I have already observ'd, in a cursory manner, the fallacy of this opinion, and shall here continue to open up a little more distinctly my sentiments on that subject.

I shall begin with observing, that this quality, which we call property, is like many of the imaginary qualities of the peripatetic philosophy, and vanishes upon a more accurate inspection into the subject, when consider'd a-part from our moral sentiments. 'Tis evident property does not consist in any of the sensible qualities of the object. For these may continue invariably the same, while the property changes. Property, therefore, must consist in some relation of the object. But 'tis not in its relation with regard to other external and inanimate objects. For these may also continue invariably the same, while the property changes. This quality, therefore, consists in the relations of objects to intelligent and rational beings. But 'tis not the external and corporeal relation, which forms the essence of property. For that relation may be the same betwixt inanimate objects, or with regard to brute creatures; tho' in those cases it forms no property. 'Tis, therefore, in some internal relation, that the property consists; that is, in some influence, which the external relations of the object have on the mind and actions. Thus the external relation, which we call occupation or first possession, is not of itself imagin'd to be the property of the object, but only to cause its property. Now 'tis evident, this external relation causes nothing in external objects, and has only an influence on the mind, by giving us a sense of duty in abstaining from that object, and in restoring it to the first possessor. These actions are properly what we call justice; and consequently 'tis on that virtue that the nature of property depends, and not the virtue on the property.

If any one, therefore, wou'd assert, that justice is a natural virtue, and injustice a natural vice, he must assert, that abstracting from the notions of property, and right and obligation, a certain conduct and train of actions, in certain external relations of objects, has naturally a moral beauty or deformity, and causes an original pleasure or uneasiness. Thus the restoring a man's goods to him is consider'd as virtuous, not because nature has annex'd a certain sentiment of pleasure to such a conduct, with regard to the property of others, but because she has annex'd that sentiment to such a conduct, with regard to those external objects, of which others have had the first or long possession, or which they have receiv'd by the consent of those, who have had first or long possession. If nature has given us no such sentiment, there is not, naturally, nor antecedent to human conventions, any such thing as property. Now, tho' it seems sufficiently evident, in this dry and accurate consideration of the present subject, that nature has annex'd no pleasure or sentiment of approbation to such a conduct; yet that I may leave as little room for doubt as possible. I shall subjoin a few more arguments to confirm my opinion.

First, If nature had given us a pleasure of this kind, it wou'd have been as evident and discernible as on every other occasion; nor shou'd we have found any difficulty to perceive, that the consideration of such actions, in such a situation, gives a certain pleasure and sentiment of approbation. We shou'd not have been oblig'd to have recourse to notions of property in the definition of justice, and at the same time make use of the notions of justice in the definition of property. This deceitful method of reasoning is a plain proof, that there are contain'd in the subject some obscurities and difficulties, which we are not able to surmount, and which we desire to evade by this artifice.

Secondly, Those rules, by which properties, rights, and obligations are determin'd, have in them no marks of a natural origin, but many of artifice and contrivance. They are too numerous to have proceeded from nature: They are changeable by human laws: And have all of them a direct and evident tendency to public good, and the support of civil society. This last circumstance is remarkable upon two accounts. First, because, tho' the cause of the establishment of these laws had been a regard for the public good, as much as the public good is their natural tendency, they wou'd still have been

artificial, as being purposely contriv'd and directed to a certain end. Secondly, because, if men had been endow'd with such a strong regard for public good, they wou'd never have restrain'd themselves by these rules; so that the laws of justice arise from natural principles in a manner still more oblique and artificial. 'Tis self-love which is their real origin; and as the self-love of one person is naturally contrary to that of another, these several interested passions are oblig'd to adjust themselves after such a manner as to concur in some system of conduct and behaviour. This system, therefore, comprehending the interest of each individual, is of course advantageous to the public; tho' it be not intended for that purpose by the inventors.

II. In the second place we may observe, that all kinds of vice and virtue run insensibly into each other, and may approach by such imperceptible degrees as will make it very difficult, if not absolutely impossible, to determine when the one ends, and the other begins; and from this observation we may derive a new argument for the foregoing principle. For whatever may be the case, with regard to all kinds of vice and virtue, 'tis certain, that rights, and obligations, and property, admit of no such insensible gradation, but that a man either has a full and perfect property, or none at all; and is either entirely oblig'd to perform any action, or lies under no manner of obligation. However civil laws may talk of a perfect dominion, and of an imperfect, 'tis easy to observe, that this arises from a fiction, which has no foundation in reason, and can never enter into our notions of natural justice and equity. A man that hires a horse, tho' but for a day, has as full a right to make use of it for that time, as he whom we call its proprietor has to make use of it any other day; and 'tis evident, that however the use may be bounded in time or degree, the right itself is not susceptible of any such gradation, but is absolute and entire, so far as it extends. Accordingly we may observe, that this right both arises and perishes in an instant; and that a man entirely acquires the property of any object by occupation, or the consent of the proprietor; and loses it by his own consent; without any of that insensible gradation, which is remarkable in other qualities and relations. Since, therefore, this is the case with regard to property, and rights, and obligations, I ask, how it stands with regard to justice and injustice? After whatever manner you answer this question, you run into inextricable difficulties. If you reply, that justice and injustice admit of degree, and run insensibly into each other, you expressly contradict the foregoing position, that obligation and property are not susceptible of such a gradation. These depend entirely upon justice and injustice, and follow them in all their variations. Where the justice is entire, the property is also entire: Where the justice is imperfect, the property must also be imperfect. And vice versa, if the property admit of no such variations, they must also be incompatible with justice. If you assent, therefore, to this last proposition, and assert, that justice and injustice are not susceptible of degrees, you in effect assert, that they are not naturally either vicious or virtuous; since vice and virtue, moral good and evil, and indeed all natural qualities, run insensibly into each other, and are, on many occasions, undistinguishable.

And here it may be worth while to observe, that tho' abstract reasoning, and the general maxims of philosophy and law establish this position, that property, and right, and obligation admit not of degrees, yet in our common and negligent way of thinking, we find great difficulty to entertain that opinion, and do even secretly embrace the contrary principle. An object must either be in the possession of one person or another. An action must either be perform'd or not. The necessity there is of choosing one side in these dilemmas, and the impossibility there often is of finding any just medium, oblige us, when we reflect on the matter, to acknowledge, that all property and obligations are entire. But on the other hand, when we consider the origin of property and obligation, and find that they depend on public utility, and sometimes on the propensities of the imagination, which are seldom entire on any side; we are naturally inclin'd to imagine, that these moral relations admit of an

insensible gradation. Hence it is, that in references, where the consent of the parties leave the referees entire masters of the subject, they commonly discover so much equity and justice on both sides, as induces them to strike a medium, and divide the difference betwixt the parties. Civil judges, who have not this liberty, but are oblig'd to give a decisive sentence on some one side, are often at a loss how to determine, and are necessitated to proceed on the most frivolous reasons in the world. Half rights and obligations, which seem so natural in common life, are perfect absurdities in their tribunal; for which reason they are often oblig'd to take half arguments for whole ones, in order to terminate the affair one way or other.

III. The third argument of this kind I shall make use of may be explain'd thus. If we consider the ordinary course of human actions, we shall find, that the mind restrains not itself by any general and universal rules; but acts on most occasions as it is determin'd by its present motives and inclination. As each action is a particular individual event, it must proceed from particular principles, and from our immediate situation within ourselves, and with respect to the rest of the universe. If on some occasions we extend our motives beyond those very circumstances, which gave rise to them, and form something like general rules for our conduct, 'tis easy to observe, that these rules are not perfectly inflexible, but allow of many exceptions. Since, therefore, this is the ordinary course of human actions, we may conclude, that the laws of justice, being universal and perfectly inflexible, can never be deriv'd from nature, nor be the immediate offspring of any natural motive or inclination. No action can be either morally good or evil, unless there be some natural passion or motive to impel us to it, or deter us from it; and 'tis evident, that the morality must be susceptible of all the same variations, which are natural to the passion. Here are two persons, who dispute for an estate; of whom one is rich, a fool, and a batchelor; the other poor, a man of sense, and has a numerous family: The first is my enemy: the second my friend. Whether I be actuated in this affair by a view to public or private interest, by friendship or enmity, I must be induc'd to do my utmost to procure the estate to the latter. Nor wou'd any consideration of the right and property of the persons be able to restrain me, were I actuated only by natural motives, without any combination or convention with others. For as all property depends on morality; and as all morality depends on the ordinary course of our passions and actions; and as these again are only directed by particular motives; 'tis evident, such a partial conduct must be suitable to the strictest morality, and cou'd never be a violation of property. Were men, therefore, to take the liberty of acting with regard to the laws of society, as they do in every other affair, they wou'd conduct themselves, on most occasions, by particular judgments, and wou'd take into consideration the characters and circumstances of the persons, as well as the general nature of the question. But 'tis easy to observe, that this wou'd produce an infinite confusion in human society, and that the avidity and partiality of men wou'd quickly bring disorder into the world, if not restrain'd by some general and inflexible principles. 'Twas, therefore, with a view to this inconvenience, that men have establish'd those principles, and have agreed to restrain themselves by general rules, which are unchangeable by spite and favour, and by particular views of private or public interest. These rules, then, are artificially invented for a certain purpose, and are contrary to the common principles of human nature, which accommodate themselves to circumstances, and have no stated invariable method of operation.

Nor do I perceive how I can easily be mistaken in this matter. I see evidently, that when any man imposes on himself general inflexible rules in his conduct with others, he considers certain objects as their property, which he supposes to be sacred and inviolable. But no proposition can be more evident, than that property is perfectly unintelligible without first supposing justice and injustice; and that these virtues and vices are as unintelligible, unless we have motives, independent of the

morality, to impel us to just actions, and deter us from unjust ones. Let those motives, therefore, be what they will, they must accommodate themselves to circumstances, and must admit of all the variations, which human affairs, in their incessant revolutions, are susceptible of. They are consequently a very improper foundation for such rigid inflexible rules as the laws of [justice?]; and 'tis evident these laws can only be deriv'd from human conventions, when men have perceiv'd the disorders that result from following their natural and variable principles.

Upon the whole, then, we are to consider this distinction betwixt justice and injustice, as having two different foundations, viz. that of interest, when men observe, that 'tis impossible to live in society without restraining themselves by certain rules; and that of morality, when this interest is once observ'd, and men receive a pleasure from the view of such actions as tend to the peace of society, and an uneasiness from such as are contrary to it. 'Tis the voluntary convention and artifice of men, which makes the first interest take place; and therefore those laws of justice are so far to be consider'd as artificial. After that interest is once establish'd and acknowledg'd, the sense of morality in the observance of these rules follows naturally, and of itself; tho' 'tis certain, that it is also augmented by a new artifice, and that the public instructions of politicians, and the private education of parents, contribute to the giving us a sense of honour and duty in the strict regulation of our actions with regard to the properties of others.

SECTION VII. Of the origin of government.

Nothing is more certain, than that men are, in a great measure, govern'd by interest, and that even when they extend their concern beyond themselves, 'tis not to any great distance; nor is it usual for them, in common life, to look farther than their nearest friends and acquaintance. 'Tis no less certain, that 'tis impossible for men to consult their interest in so effectual a manner, as by an universal and inflexible observance of the rules of justice, by which alone they can preserve society, and keep themselves from falling into that wretched and savage condition, which is commonly represented as the state of nature. And as this interest, which all men have in the upholding of society, and the observation of the rules of justice, is great, so is it palpable and evident, even to the most rude and uncultivated of human race; and 'tis almost impossible for any one, who has had experience of society, to be mistaken in this particular. Since, therefore, men are so sincerely attach'd to their interest, and their interest is so much concern'd in the observance of justice, and this interest is so certain and avow'd; it may be ask'd, how any disorder can ever arise in society, and what principle there is in human nature so powerful as to overcome so strong a passion, or so violent as to obscure so clear a knowledge?

It has been observ'd, in treating of the passions, that men are mightily govern'd by the imagination, and proportion their affections more to the light, under which any object appears to them, than to its real and intrinsic value. What strikes upon them with a strong and lively idea commonly prevails above what lies in a more obscure light; and it must be a great superiority of value, that is able to compensate this advantage. Now as every thing, that is contiguous to us, either in space or time, strikes upon us with such an idea, it has a proportional effect on the will and passions, and commonly operates with more force than any object, that lies in a more distant and obscure light. Tho' we may be fully convinc'd, that the latter object excels the former, we are not able to regulate our